

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 1618 By: Gollihare of the Senate
3 and
4 Harris of the House
5
6

7 An Act relating to the Pretrial Release Act; amending
8 22 O.S. 2021, Section 1105.2, which relates to
9 conditions of release; defining term; requiring court
10 to conduct certain risk assessments; requiring
11 assessment to be provided to defense counsel upon
12 request; updating statutory language; updating
13 statutory references; and providing an effective
14 date.

14 AUTHOR: Add the following House Coauthor: Moore

15 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
16 and insert:
17

18 "An Act relating to the criminal procedure; creating
19 the Public Protection Act; amending 22 O.S. 2021,
20 Section 1105.2, which relates to conditions of
21 release; defining term; authorizing inclusion of
22 certain information in public safety report; allowing
23 courts to utilize public safety reports to determine
24 release conditions; providing an exception; requiring
submission of public safety report to defense counsel
upon request; updating statutory language; updating
statutory references; providing for noncodification;
and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law not to be
3 codified in the Oklahoma Statutes reads as follows:

4 This act shall be known and may be cited as the "Public
5 Protection Act".

6 SECTION 2. AMENDATORY 22 O.S. 2021, Section 1105.2, is
7 amended to read as follows:

8 Section 1105.2. A. For the purposes of this section, "public
9 safety report" means a risk assessment tool administered by a
10 pretrial release program, as set forth in Section 1105.3 of this
11 title, that predicts the likelihood of the risk of failure of a
12 defendant to appear in court or risk of being arrested for a new
13 crime during the pretrial period. The public safety report may:

14 1. State the requirements for setting bail under Section 1101
15 of this title;

16 2. Provide the name and date of birth of the defendant or, if
17 impracticable, other identifying information, the cause number of
18 the case, if available, and the offense for which the defendant was
19 arrested;

20 3. Provide information on the eligibility of the defendant for
21 a cash bond;

22 4. Provide information regarding the applicability of any
23 required or discretionary bond conditions; and
24

1 5. Provide, in summary form, the criminal history of the
2 defendant, including information regarding any:

3 a. previous misdemeanor or felony convictions,

4 b. pending charges,

5 c. previous sentences imposing a term of confinement,

6 d. previous convictions or pending charges for:

7 (1) offenses that are deemed violent crimes as
8 defined in Section 571 of Title 57 of the
9 Oklahoma Statutes, or

10 (2) offenses involving violence directed against a
11 peace officer,

12 e. previous failures of the defendant to appear in court
13 following release on bail,

14 f. whether the defendant is currently on community
15 supervision, parole, or mandatory supervision for an
16 offense,

17 g. whether the defendant is currently released on bail or
18 participating in a pretrial release program and any
19 conditions of that release or participation,

20 h. outstanding warrants for the arrest of the defendant
21 that have been entered into the National Crime
22 Information Center database or the Oklahoma Law
23 Enforcement Telecommunications System, and

1 i. any current protective orders, as provided in the
2 Protection from Domestic Abuse Act, for which the
3 defendant is the subject.

4 B. Following an arrest for a misdemeanor or felony offense and
5 before formal charges have been filed or an indictment made, the
6 arrested person may have bail set by the court as provided in this
7 ~~act~~ section; provided there are no provisions of law to the
8 contrary.

9 ~~B.~~ C. When formal charges or an indictment has been filed, bail
10 shall be set according to law and the pretrial bond, if any, may be
11 reaffirmed unless additional security is required. Every judicial
12 district may, upon the order of the presiding judge for the
13 district, establish a pretrial bail schedule for felony or
14 misdemeanor offenses, except for traffic, wildlife, or water safety
15 offenses included in subsections B, C and D of Section 1115.3 of
16 ~~Title 22 of the Oklahoma Statutes~~ this title and those offenses
17 specifically excluded herein. The bail schedule ~~established~~
18 ~~pursuant to the authority of this act~~ shall exclude any offense for
19 which bail is not allowed by law. The bail schedule ~~authorized by~~
20 ~~this act~~ shall be set in accordance with guidelines relating to bail
21 and shall be published and reviewed by March 1 of each year by the
22 courts and district attorney of the judicial district.

23 ~~C.~~ D. The court may utilize a public safety report to assist in
24 determining release conditions for a defendant; provided, however,

1 if a defendant has been charged with a violent crime, as defined in
2 Section 571 of Title 57 of the Oklahoma Statutes, the court shall
3 utilize a public safety report to assist in determining release
4 conditions for said defendant. The results of the public safety
5 report shall not be used as the sole basis to grant or deny pretrial
6 release. Upon request, results of the public safety report shall be
7 provided to defense counsel and to counsel for the state.

8 E. The pretrial bail shall be set in a numerical dollar amount.
9 If the person fails to appear in court as required the judge shall:

10 1. Rescind the bond and proceed to enter a judgment against the
11 defendant for the dollar amount of the pretrial bail if no private
12 bail was given at the time of release; provided, however, the court
13 clerk shall follow the procedures as set forth in Section 1301 et
14 seq. of Title 59 of the Oklahoma Statutes in collecting the
15 forfeiture amount against the person who fails to appear in court;
16 or

17 2. Rescind and forfeit the private bail if cash, property or
18 surety bail was furnished at the time of release as set forth in
19 Section 1301 et seq. of Title 59 of the Oklahoma Statutes.

20 ~~D.~~ F. When a pretrial program exists in the judicial district
21 where the person is being held, the ~~judge~~ court may utilize the
22 services of the pretrial release program when ordering pretrial
23 release, except when private bail has been furnished.

~~E. G.~~ Upon an order for pretrial release or release on bond, the person shall be released from custody without undue delay.

F. H. The court may require the person to be placed on an electronic monitoring device as a condition of pretrial release.

~~G.~~ I. In instances where an electronic monitoring device has been ordered, the court may impose payment of a supervision fee. Payment of the fee, in whole or according to a court-ordered installment schedule, shall be a condition of pretrial release. The court clerk shall collect the supervision fees.

SECTION 3. This act shall become effective January 1, 2027."

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House of
Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate

1 ENGROSSED SENATE
2 BILL NO. 1618

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4 Harris of the House
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6 An Act relating to the Pretrial Release Act; amending
7 22 O.S. 2021, Section 1105.2, which relates to
8 conditions of release; defining term; requiring court
9 to conduct certain risk assessments; requiring
assessment to be provided to defense counsel upon
request; updating statutory language; updating
statutory references; and providing an effective
date.
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11
12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 4. AMENDATORY 22 O.S. 2021, Section 1105.2, is
14 amended to read as follows:

15 Section 1105.2. A. For the purposes of this section, "pretrial
16 risk assessment" means a validated actuarial assessment that
17 predicts a defendant's pretrial risk of danger to persons or the
18 community or risk of flight. The pretrial risk assessment may
19 include:

20 1. Information related to the defendant's criminal and
21 substance abuse history, and ties to the community; and

22 2. Consideration of the nature, circumstances, and seriousness
23 of the offense.
24

1 B. Following an arrest for a misdemeanor or felony offense and
2 before formal charges have been filed or an indictment made, the
3 arrested person may have bail set by the court as provided in ~~this~~
4 ~~act~~ the Pretrial Release Act; provided there are no provisions of
5 law to the contrary.

6 ~~B.~~ C. When formal charges or an indictment has been filed, bail
7 shall be set according to law and the pretrial bond, if any, may be
8 reaffirmed unless additional security is required. Every judicial
9 district may, upon the order of the presiding judge for the
10 district, establish a pretrial bail schedule for felony or
11 misdemeanor offenses, except for traffic, wildlife, or water safety
12 offenses included in subsections B, C and D of Section 1115.3 of
13 ~~Title 22 of the Oklahoma Statutes~~ this title and those offenses
14 specifically excluded herein. The bail schedule ~~established~~
15 ~~pursuant to the authority of this act~~ shall exclude any offense for
16 which bail is not allowed by law. The bail schedule ~~authorized by~~
17 ~~this act~~ shall be set in accordance with guidelines relating to bail
18 and shall be published and reviewed by March 1 of each year by the
19 courts and district attorney of the judicial district.

20 ~~C.~~ D. The court shall conduct a pretrial risk assessment to
21 assist in determining release conditions for a defendant. The
22 results of the assessment shall not be used as the sole basis to
23 grant or deny pretrial release. Upon request, results of the
24 assessment shall be provided to defense counsel.

1 E. The pretrial bail shall be set in a numerical dollar amount.

2 If the person fails to appear in court as required the judge shall:

3 1. Rescind the bond and proceed to enter a judgment against the
4 defendant for the dollar amount of the pretrial bail if no private
5 bail was given at the time of release; provided, however, the court
6 clerk shall follow the procedures as set forth in Section 1301 et
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8 forfeiture amount against the person who fails to appear in court;
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11 surety bail was furnished at the time of release as set forth in
12 Section 1301 et seq. of Title 59 of the Oklahoma Statutes.

13 ~~D.~~ F. When a pretrial program exists in the judicial district
14 where the person is being held, the ~~judge~~ court may utilize the
15 services of the pretrial release program when ordering pretrial
16 release, except when private bail has been furnished.

17 ~~E.~~ G. Upon an order for pretrial release or release on bond,
18 the person shall be released from custody without undue delay.

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20 electronic monitoring device as a condition of pretrial release.

21 ~~G.~~ I. In instances where an electronic monitoring device has
22 been ordered, the court may impose payment of a supervision fee.
23 Payment of the fee, in whole or according to a court-ordered

1 installment schedule, shall be a condition of pretrial release. The
2 court clerk shall collect the supervision fees.

3 SECTION 5. This act shall become effective November 1, 2026.

4 Passed the Senate the 26th day of March, 2026.

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Presiding Officer of the Senate

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8 Passed the House of Representatives the ____ day of _____,
9 2026.

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Presiding Officer of the House
of Representatives

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